

rejection dated July 9, 2024. (Evid. Code, § 452(c).); *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376.) See attachments to Complaint and Request for Judicial Notice (“RJN”) Exh. A. The court may take judicial notice of the contents of its own file.

Government Claims Act. Unless provided by statute, a public entity is not liable for an injury. (Gov. Code, § 815(a).) Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions. (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.)

Under the Government Claims Act (a.k.a. the Tort Claims Act), claims for damages to personal property against public entities must be presented to the entity within six months of accrual of the injury. (Govt. Code, 911.2(a); *A.M. v. Ventura Unified School District* (2016) 3 Cal.App.5th 1252, 1257.) Thereafter, suit must be filed within six months of the public entity’s notice that the claim was rejected (Govt. Code § 945.6) or within two years from accrual of the cause of action if the public entity fails to send proper written notice of the rejection. (Govt. Code, § 945.6(a)(2).) When the public entity provides notice, the clock begins to run on the date notice of denial is personally delivered or deposited in the mail. (Govt. Code, § 945.6.)

The complaint in this action was not filed until February 19, 2025. Six months from July 9, 2024 was January 9, 2025. Plaintiff’s suit filed February 19, 2025 is time-barred.

Although the complaint alleges that Plaintiff is excused from complying with the claims act because “California allows 1 year from date of incident to sue responsible parties” that statement does not correctly reflect applicable law.

Discretionary Immunity Because the court finds Plaintiff’s suit is time-barred it does not reach Defendant’s additional argument on demurrer that CITY is immune from liability arising from a police pursuit. (See e.g. Veh. Code, § 17004.7; *Brumer v. City of Los Angeles* (1994) 24 Cal.App.4th 983, 987.)

Conclusion Defendant’s demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. This suit shall be dismissed. CITY to prepare an order after hearing and judgment and to submit directly to court. The case management conference and any future scheduled dates are vacated.

IN THE MATTER OF CYNTHIA J CAMPBELL
Case No. CL25-10837

Petition for Court Approval of a Transfer of Structured Settlement Payment Rights

TENTATIVE RULING:

The petition is DENIED.

Petitioner seems to be conflating a petition to request approval of the sale of all or a portion of a structured settlement with a request to advance or cash out future payments on an annuity purchased as part of a structured settlement for her benefit.

Notably, it appears Petitioner has previously sold portions of her annuity. (See *In re Petition of Symetra Assigned Benefits Services* FCS034828; *Cynthia Campbell v. Symetra Assigned Benefits Services* FCS030497; *Cynthia Campbell v. Symetra Assigned Benefits Services* FCS032167.)

The court is unaware of any legal authority to compel an insurance company to advance payments on an annuity contract in which it agreed in exchange for purchase of the annuity to make specific periodic payouts over a specific period of time.

Petitioner may wish to seek legal advice.

MCNAMARA v. REVEILLE FARMS, ET AL.
Case No. CU24-02198

Motion to Deem Matters Admitted by Defendant RICHARD MATHIES

Tentative Ruling:

Plaintiff MCNAMARA's unopposed Motion to Deem Matters Admitted in REQUEST FOR ADMISSIONS (Set Two) by Defendant RICHARD MATHIES is GRANTED. Defendant RICHARD MATHIES shall be deemed to have admitted all propounded Requests for Admission (Set Two).

While the caption of Plaintiff's motion requests monetary sanctions, the body of Plaintiff's motion does not.

The proposed order lodged with the court will be processed forthwith.

EDEN v. AU ENERGY, LLC, ET AL.
Case No. CU24-04941

Motion for Entry of Consent Judgment
TENTATIVE RULING

Plaintiff EDEN's motion for approval of a consent judgment pursuant to Proposition 65 is GRANTED.

Under Proposition 65, "No person in the course of doing business shall knowingly and intentionally expose any individual to a chemical known to the state to cause cancer or reproductive toxicity without first giving clear and reasonable warning to such individual, except as provided in Section 25249.10." (Health and Safety Code § 25249.6)